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Navigating hate speech and content moderation under the DSA: insights from ECtHR case law

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ABSTRACT

The dissemination of hate speech online necessitates forceful content moderation to protect individuals and democratic values, without undue infringement of freedom of expression and the right to access information. In Europe, recent regulatory measures like the Digital Services Act (DSA) address the amplification of harmful content on social media, and place responsibilities on Very Large Online Platforms to counter societal risks, such as hate speech. The DSA mandates that platforms balance commercial interests with protecting user rights and safety, necessitating nuanced moderation strategies. However, both automated and human moderation face challenges in accurately identifying and countering hate speech. The European Convention on Human Rights (ECHR) and its interpretation by the European Court of Human Rights (ECtHR) provide essential guidance for navigating how to counter hate speech and also protect freedom of expression. This article aims to contribute to the understanding the emerging landscape of platform regulation and how the demands in the DSA can be better understood and operationalized regarding moderation of hate speech, in light of ECtHR case law.

KEYWORDS

Hate speech; social media
content moderation; digital
services act

Introduction

The proliferation of hate speech online remains a key unresolved issue in the regulation of the online sphere. This highlights the importance of online content moderation in order to sufficiently protect individuals as well as democratic values, while not censoring the online sphere and the right to freedom of expression.¹ The regulation of content moderation has always been complex due to the need to provide a framework that promotes and allows for a careful balancing between different interests; from financial and marketing interests of corporations to the societal responsibilities of social media platforms, and the balancing of fundamental rights for individual users. To this must be added the never-ending dissemination of content. All of this must be considered when regulating social

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¹Therese Enarsson and Simon Lindgren, 'Free Speech or Hate Speech? A Legal Analysis of the Discourse about Roma on Twitter' (2019) 28 Information & Communications Technology Law 1.

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media platforms.² From a European point of view, the regulatory measures impacting social media content moderation have increased over the last few years. This is most evident through the Digital Services Act (DSA)³ recently coming into force, but also more specific regulations, like the EU Regulation on addressing the dissemination of terrorist content online,⁴ which came into force in 2021. National legislation on content moderation in EU member States have also been enacted, for example Germany's 'The Network Enforcement Act' (NetzDG),⁵ that was passed in 2017. These examples are all reactions to the role of social media in our modern society, as one of the dominant arenas for accessing and sharing information, while also acknowledging the risk of amplification of unwanted content – including disinformation, terrorist propaganda or illegal hate speech – on these platforms. The problem with hate speech has thus been a major driving factor for regulatory measures towards online platforms in Europe.⁶

The regulatory view on Very Large Online Platforms, (VLOPs), has developed in response to their increased dominance over the public forum and societal discourse, and they are now seen as somewhat comparable to States, public institutions, or even courts.⁷ Because of this important role, legal research has highlighted the need for similar rule of law requirements that surround public institutions, to be directed towards VLOPs. The fact that courts are no longer the only institution to govern, punish or ban speech, as online platforms (and to some extent, users of those platforms) can make similar decisions – often in a more direct and sometimes more effective way – has completely changed the landscape of sharing and receiving information, but also the means of restricting online speech.⁸ However effective this may be in terms of restricting access to, or even removing irrelevant, unwanted, harmful or illegal content, it is also connected to an equal risk of abuse, such as reducing awareness of heinous acts – for instance by removing depictions of terrorism or war crimes posted to raise awareness – or the suppression of dissenting speech. So far, the EU has largely steered clear of regulating content directly, instead providing an overarching framework for platforms' societal responsibility to provide safe spaces online.⁹ Through the new DSA, platforms will now find themselves cast in a role as arbiters in a balancing act where they will have a responsibility to not only protect their own commercial interests and keep the platforms relevant for users and advertisers, but also to protect fundamental rights and the safety of their

²Gabi Schlag, 'European Union's Regulating of Social Media: A Discourse Analysis of the Digital Services Act' (2023) 11 *Politics and Governance* 168; James Banks, 'Regulating Hate Speech Online' (2010) 24 *International Review of Law, Computers & Technology* 233.

³Regulation (EU) 2022/2065 of the European Parliament and of the Council of 19 October 2022 on a Single Market for Digital Services and amending Directive 2000/31/EC (Digital Services Act) (Text with EEA relevance) 2022 (OJ L).

⁴The European Parliament and the Council of the European Union, 'Regulation (EU) 2021/784 of the European Parliament and of the Council of 29 April 2021 on Addressing the Dissemination of Terrorist Content Online' <<https://eur-lex.europa.eu/legal-content/EN/TXT/HTML/?uri=CELEX%3A32021R0784>> accessed 31 December 2023.

⁵NetzDG – Gesetz Zur Verbesserung Der Rechtsdurchsetzung in Sozialen Netzwerken' <<https://www.gesetze-im-internet.de/netzdg/BJNR335210017.html>> accessed 31 December 2023.

⁶Tarleton Gillespie, *Custodians of the Internet: Platforms, Content Moderation, and the Hidden Decisions That Shape Social Media* (Yale University Press, 2018) 37.

⁷Ivar A Hartmann, 'A New Framework for Online Content Moderation' (2020) 36 *Computer Law & Security Review* 105376; 6; Kate Klonick, 'The New Governors: The People, Rules, and Processes Governing Online Speech' (2018) 131 *Harvard Law Review* 1598; See also Giancarlo Frosio and Christophe Geiger, 'Taking Fundamental Rights Seriously in the Digital Services Act's Platform Liability Regime' (2023) 29 *European Law Journal* 31, 32.

⁸*Ibid.*

⁹Schlag (n 2).

users.¹⁰ Going beyond this, in the matter of hate speech, the platforms must protect not only their users, but others that can be affected by the content on their platforms as well.¹¹

However, through this regulatory approach, social media platforms have a rather extensive discretion to shape and adapt their moderation systems within the boundaries of the rules. For instance, platforms can decide how, and to what extent, their systems can be automated and in which contexts moderation decisions should be made by human content moderators alone, or as a complement to automated content moderation systems. Reasonably, some content will be more appropriate for automatic deletion or restriction, ranging from either spam or nonsensical content being automatically disseminated at scale, to content that is more or less universally banned, like depictions of sexual abuse of children. Other content can, however, through its very nature, demand that human moderators provide contextualized assessment to avoid undue infringements on fundamental rights. This is particularly relevant for the right to freedom of expression and the freedom of information, for instance in relation to content that is political in nature.¹² In the matter of hate speech, it is not uncommon that such speech occurs in discussions or contexts that can also be seen as part of a political discussion, demanding a nuanced approach to the balancing of interests.¹³

As a further added complexity, both human moderators and automated moderation systems may have significant problems in detecting and countering illegal hate speech. For instance, in 2023 the European Union Agency for Fundamental Rights expressed deep concern as to the possibilities to effectively moderating hate speech:

Disturbingly, a large amount of misogyny and racism slips through content moderation systems designed to prevent it. Human content checkers can miss online hate. Also, algorithms are prone to errors. They may multiply errors over time, and may even end up promoting online hate. This is deeply worrying.¹⁴

As the prime instrument on human rights in Europe and one of most advanced systems for the protection of human rights in the world, the European Convention for the Protection of Human rights and Fundamental Freedoms (hereinafter *ECHR* or the *European convention/convention*), provide guidance for the understanding of how fundamental rights such as freedom of expression and information can be understood and implemented, but also what constitutes undue restrictions or violation of rights. The ECHR also constitute general principles of Union's law. This is clear from the EU Charter of Fundamental Rights (the Charter), art 53. In the Treaty on European Union (TEU), it is also specified, in art 6.3, that the fundamental rights guaranteed by ECHR constitute general principles of Union's law. Therefore, when interpreting Union law, the Luxembourg's European

¹⁰Regulation (EU) 2022/2065 of the European Parliament and of the Council of 19 October 2022 on a Single Market for Digital Services and amending Directive 2000/31/EC (Digital Services Act) (Text with EEA relevance) recital 9, art 34, art 35; Frosio and Geiger (n 7).

¹¹Niklas Eder, 'Making Systemic Risk Assessments Work: How the DSA Creates a Virtuous Loop to Address the Societal Harms of Content Moderation' (26 June 2023) 11 <<https://papers.ssrn.com/abstract=4491365>> accessed 3 July 2024.

¹²Therese Enarsson, Lena Enqvist and Markus Naarttijärvi, 'Approaching the Human in the Loop – Legal Perspectives on Hybrid Human/Algorithmic Decision-Making in Three Contexts' (2022) 31 Information & Communications Technology Law 123; Enarsson and Lindgren (n 1).

¹³Enarsson and Lindgren (n 1).

¹⁴European Union Agency for Fundamental Rights (FRA), 'Online Content Moderation Current Challenges in Detecting Hate Speech' (2023) 3.

Court of Justice (ECJ) must take the rulings made by the European Court of Human Rights (ECtHR) into consideration. To establish how the ECtHR could inform the understanding and operationalization of the DSA, the demands on VLOPs stated in the DSA regarding moderation – especially obligations to moderate illegal hate speech – must be clarified. Seeing that the ECJ must consider the principles by the ECtHR when applying the DSA in future decisions, an analysis of the Strasbourg courts’ reasoning can provide important guidance on what constitutes illegal hate speech under the ECHR, thus excluded from protection under the convention, and what constitutes other forms of hateful speech that, under certain circumstances, should be balanced with the right to freedom of expression. This analysis could also inform self-regulatory measures and guidelines for VLOPs seeing that they ought to be in line with the standards in the DSA and uphold the protection of fundamental rights.

Aim, interpretation and qualitative legal analysis

This article aims to contribute to a constructive and normative clarification of the demands on VLOPs set by the DSA for moderation of illegal hate speech, specifically if and how these demands can be operationalized.¹⁵ The starting point of analysis will be the DSA to establish the specific legal rules, preconditions, limits and demands on regulating illegal content, specifically hate speech, and content moderation. Using that as a point of departure, the main part of the analyzed legal material is the case law from the ECtHR. This can provide a framework based on the ECHR and the case law from the ECtHR, focusing on delineating categories of content that might be more suitable for automatic removal under the DSA due to its’ severe nature, and what VLOPs will have to consider in their internal guidelines for human moderators, in order for them to make nuanced decisions. This will be done by using a qualitative analysis of legal material, from established methods of interpretation based on the hierarchy of the legal sources.¹⁶ The case law will be focused on clearly illegal hate speech as defined by case law under art 17, with its prohibition of abuse of rights. Thus, a type of speech or actions that would be removed from the protection under art 10, with its protection of freedom of expression – including a right to receive, not only, convey, information. The analysis will draw upon these findings to contribute to an understanding of this emerging landscape of platform regulation, and how the demands in the DSA can be better understood and operationalized regarding the moderation of hate speech, in light of ECtHR case law.

Platform obligations to counter illegal hate speech under the DSA

The DSA is a product of the European Commission and builds on the e-Commerce Directive (2000/31/EC), trying to unify emerging national regulation on the online sphere, and

¹⁵The focus of this article is the responsibilities of VLOPs as defined in the DSA. Regulation (EU) 2022/2065 of the European Parliament and of the Council of 19 October 2022 on a Single Market for Digital Services and amending Directive 2000/31/EC (Digital Services Act) (Text with EEA relevance) art 33. See also recital 76. For a specified list of VLOPs and Very Large Online Search Engines (VLOSEs) see ‘DSA: Very Large Online Platforms and Search Engines’ (*European Commission – European Commission*).

<https://ec.europa.eu/commission/presscorner/detail/en/ip_23_2413> accessed 31 December 2023.

¹⁶JM Smits, *The Mind and Method of the Legal Academic* (Edward Elgar Publishing, 2012); Ian McLeod, *Legal Method* (Bloomsbury Publishing, 2020).

create a safer space online for users and limiting the societal risks of major online platforms. The demands put forward in the DSA aims to ensure that the actors in the online environment help ensure a 'safe, predictable and trustworthy online environment' on the internet, which is said to be key in providing citizens with an arena to exercising their fundamental rights. One major aspect of the DSA is how, especially VLOPs, should counter the dissemination of illegal content.¹⁷

The question of illegality

The DSA provides a very broad legal definition for *illegal content*, with examples of what it includes, naming various types of content like depictions of child sexual abuse, stalking, unlawful non-consensual sharing of private images, as well as terrorist content and hate speech. The specification of illegality is such content that doesn't comply with 'Union law or the law of any Member State' and should, according to the DSA, correspond to acts that are also illegal offline.¹⁸ Noteworthy is that there is no guidance for which national law should be applied (many communications online must be seen as cross-national) or if this includes content that is illegal anywhere (but not everywhere) in the EU.¹⁹

The matter of illegality is thus not immediately apparent from the DSA, but ever so significant in regard to obligations for VLOPs and other hosting services and platforms.²⁰ These actors are obligated to remove, or otherwise restrict access to, illegal content uploaded on the platform, when aware of such content. A failure to do so could result in liability:

In order to benefit from the exemption from liability for hosting services, the provider should, upon obtaining actual knowledge or awareness of illegal activities or illegal content, act expeditiously to remove or to disable access to that content. The removal or disabling of access should be undertaken in the observance of the fundamental rights of the recipients of the service, including the right to freedom of expression and of information.²¹

The balancing act between removal of illegal content and protection of freedom of expression by providing an arena for people to share information, is key here, and throughout the DSA. Unfortunately, the statement does still not clarify what constitutes illegal content. One way of addressing the practicalities of this, if not the definition, is the demand for notice and action mechanisms in art 16. Here the DSA requires that all providers of hosting services, including VLOPs, should have notice and action mechanisms in place for individuals or groups to notify the service of content 'that the individual or entity considers to be illegal content'. Related to the quotation above, this line of reasoning is slightly further developed in the recitals, where recital 51 specifies that responses to notifications from users of illegal content should be

¹⁷Regulation (EU) 2022/2065 of the European Parliament and of the Council of 19 October 2022 on a Single Market for Digital Services and amending Directive 2000/31/EC (Digital Services Act) (Text with EEA relevance) recitals 2, 3, 9.

¹⁸ibid art 3 (h), recital 12.

¹⁹Franziska Katharina Mauritz, 'To Define Is Just to Define' [2024] Verfassungsblog <<https://verfassungsblog.de/to-define-is-just-to-define/>> accessed 24 June 2024; Marcin Rojszczak, 'The Digital Services Act and the Problem of Preventive Blocking of (Clearly) Illegal Content' (2023) 3 Institutiones Administrationis – Journal of Administrative Sciences 44.

²⁰See DSA, art 3, for definitions.

²¹Regulation (EU) 2022/2065 of the European Parliament and of the Council of 19 October 2022 on a Single Market for Digital Services and amending Directive 2000/31/EC (Digital Services Act) (Text with EEA relevance) recital 22.

strictly targeted, in the sense that it should serve to remove or disable access to the specific items of information considered to constitute illegal content, without unduly affecting the freedom of expression and of information of recipients of the service.

According to the DSA this should be harmonized in the EU, to guarantee uniform systems and transparency to safeguard fundamental rights as protected by the Charter, for example freedom of expression and a right to information. At the same time, these actions must be taken swiftly, especially if the illegal content concerns threats against human lives or safety. The technological mechanisms of the action and notice systems must also be designed in a way that is clear in terms of the reason for suspected illegality, so that the platform can make an informed moderation decision (delete or restrict access to the content, or not). Again, the DSA states that this should be done with respect to freedom of expression and a right to receive information. In cases where a detailed legal investigation is not needed to determine illegality, such a notice should also prove that a service provider had sufficient knowledge of illegal material on the platform, meaning that liability could ensue if an action is not taken.²² This could be understood as more clear-cut cases that to most people in most legal jurisdictions would be perceived as illegal, but it is not clarified. Hate speech is a recurring example though, throughout the DSA, of a type of content that should be acknowledged and managed by VLOPs.²³

Demands for moderating illegal hate speech

A fundament in the DSA is the risk assessment regime now placed on VLOPs, adding a responsibility to perform risk assessments as well as risk mitigation of several aspects of their service, including dissemination of illegal content and anticipated negative effects on fundamental rights. The risks associated with the spread of illegal content like hate speech, as well as certain harmful²⁴ content must be diligently noticed, analyzed, and tackled by VLOPs, and the use of efficient content moderation is highlighted as one tool for doing that.²⁵ However, the demands for efficient countermeasures in the DSA are complex, combining vagueness, or discretion for VLOPs, with strict obligations to ensure the protection of individual users of the platforms and mitigating societal risks in a broader sense, from the use of their services. It's also clearly stated in the DSA that these new demands are not demands for automatic monitoring of platforms, and according to recital 30 they are '[...] neither de jure, nor de facto, subject to a monitoring obligation with respect to obligations of a general nature.' Only when made aware of illegal content or behaviors on the platform – for example through the notice and action systems mentioned above – are they obligated to act.²⁶

The specifics of the moderation process and systems, as well as individual moderation decisions or moderation on scale, is to be decided by the company applying them – while

²²ibid recitals 55, 53.

²³ibid art 35, recital 12, 62, 80, 77.

²⁴Here disinformation is specifically mentioned, as something that is not, per definition, illegal, but is described as harmful and posing a societal threat, see recitals 9, 69, 104, 108.

²⁵Regulation (EU) 2022/2065 of the European Parliament and of the Council of 19 October 2022 on a Single Market for Digital Services and amending Directive 2000/31/EC (Digital Services Act) (Text with EEA relevance) recitals 55, 53. See also recital 80.

²⁶ibid art 6. Rojszczak (n 19) 46–47.

at the same time the DSA clearly requires that certain content be removed, and removed quickly. The demands on the DSA requiring swift decisions refer to the Code of Conduct on Countering Illegal Hate Speech Online.²⁷ The Code of Conduct is a product predating the overarching regulatory framework in the DSA, in which major platforms agreed to self-regulatory measures as a way preclude actual European legislative measures that had been a threat for years.²⁸ The agreement was also a way to keep the unique status previously awarded to major platforms, as they have been able to remain unregulated with discretion to self-regulate within their own infrastructure, for instance through terms and conditions.²⁹ Nevertheless, through this Code of Conduct a 24-hour rule for removal of illegal hate speech was agreed upon. The DSA is a way to move away from strictly relying on self-regulatory measures, but still draw on these agreements and built upon the responsibilities.³⁰ The Code with its 24-hour rule is therefore referenced in the DSA, but it is also stated that other kinds of illegal content 'may take considerably different timelines for processing, depending on the specific facts and circumstances and types of illegal content at stake',³¹ declaring that such a timeline can be both longer and shorter than 24 hours for illegal content.³²

The timelines for removal can be interpreted as indicating an expectation for swiftness and responsiveness, expressly relating to hate speech but potentially also other forms of illegal content. Such demands could then imply, or indirectly demand, a heavy reliance on automated systems to handle the never-ending stream of uploaded content in that short a time. It is already clear that a vast majority of moderation decisions on most VLOPs are made automatically. According to the DSA Transparency Datacenter around 69% of decisions are fully made with automated systems.³³ However, there are also already indications that the implementation of the DSA differs significantly across platforms, for instance regarding automated vs. human moderation. Most VLOPs use some kind of automated AI moderation system to target most of the illegal content, except from X, who claims to rely only on human moderators (which could help explain the moderation rate compared to, for instance, TikTok who makes more than 350 times more content moderation decisions – per user – than X).³⁴ Since balancing between removing or restricting access to illegal content and protecting the freedom to share and receive information is fundamental in the DSA, this is interesting. Clearly, not all of these moderation

²⁷European Commission, 'The EU Code of Conduct on Countering Illegal Hate Speech Online' <https://commission.europa.eu/strategy-and-policy/policies/justice-and-fundamental-rights/combating-discrimination/racism-and-xenophobia/eu-code-conduct-countering-illegal-hate-speech-online_en>.

²⁸Luciano Floridi, 'The End of an Era: From Self-Regulation to Hard Law for the Digital Industry' (2021) 34 *Philosophy & Technology* 619, 621; Danielle Keats Citron, 'Extremist Speech, Compelled Conformity, and Censorship Online' (2018) 93 *Notre Dame Law Review*, 1037.

²⁹Hannah Bloch-Wehba, 'Global Platform Governance: Private Power in the Shadow of the State' (2019) 72 *SMU Law Review* 29–30.

³⁰Martin Husovec, 'Rising Above Liability: The Digital Services Act as a Blueprint for the Second Generation of Global Internet Rules' (2023) 38 *Berkeley Technology Law Journal*, 104; Aina Turillazzi and others, 'The Digital Services Act: An Analysis of Its Ethical, Legal, and Social Implications' (2023) 15 *Law, Innovation and Technology* 83, 93; See also Alexandra Geese, in Joris Hoboken and others, 'Putting the DSA into Practice: Enforcement, Access to Justice, and Global Implications' (Verfassungsbooks) 68.

³¹Regulation (EU) 2022/2065 of the European Parliament and of the Council of 19 October 2022 on a Single Market for Digital Services and amending Directive 2000/31/EC (Digital Services Act) (Text with EEA relevance) recital 62.

³²*Ibid* recital 87.

³³European Commission, 'DSA Transparency Database' <<https://transparency.dsa.ec.europa.eu/>> accessed 26 June 2024.

³⁴Chiara Drolsbach and Nicolas Pröllochs, 'Content Moderation on Social Media in the EU: Insights from the DSA Transparency Database' (arXiv, 7 December 2023) <<http://arxiv.org/abs/2312.04431>> accessed 18 June 2024.

decisions will concern hate speech, but fully automated decisions are made on hate speech as well.³⁵ As long as these are not very clear cases – perhaps even if they are – they would require some form of nuanced assessment, and if that is not provided by a human moderator it would have to be encoded into the automated system.

This brings us back to definitions. There is no definition of hate speech under EU law.³⁶ The definition of hate speech in the Code of Conduct on Countering Illegal Hate Speech Online draws on the definition in the Council Framework Decision on combating certain forms and expressions of racism and xenophobia by means of criminal law,³⁷ and refers to public actions inciting to violence or hatred directed against an individual or group of people, based on their race, color, religion or origin. But similarly to illegal content, the DSA does not attempt to define what constitutes hate speech. This is unfortunate, seeing that platforms must adapt their systems to combat such speech. The fact that the DSA refers to Code of Conduct on Countering Illegal Hate Speech Online could perhaps indicate a shared or similar definition, but there is no explicit statement in the DSA to that fact.

To approach an understanding of the concept of hate speech under the DSA, we could also draw on the Recommendation for combating hate speech by the Committee of Ministers from 2022, directed at the member states. Here the scope is broader than the Code of Conduct, and includes speech that ‘incite, promote, spread or justify violence, hatred or discrimination’ toward someone because of their age, disability, sex, gender identity and sexual orientation as well.³⁸ In the recommendation it’s also clearly stated that the member states need to have a calibrated system to handle different kinds of hate speech, in alignment with the ECHR. Such systems should allow for calibrations regarding hate speech that is illegal under criminal law, hate speech that could be actionable under administrative or civil law, and harmful expressions that would *not* be considered hate speech under the ECHR.³⁹ The recurring references to the ECHR is interesting nevertheless, and further indicates the importance of the interpretation of the convention, in order to understand the scope of hate speech, and the implications for online moderation.

Illegal hate speech under the European Convention on Human Rights

Emerging demands on moderation from Strasbourg

As mentioned, the ECHR is the prime instrument of establishing human rights in Europe, and the analysis and reasoning of the ECtHR interpreting the convention should be able to provide guidance on how the demands for moderating hate speech under the DSA

³⁵‘Statement of Reasons Details - - DSA Transparency Database’ <<https://transparency.dsa.ec.europa.eu/statement/20501711165>> accessed 26 June 2024; ‘Statement of Reasons Details - - DSA Transparency Database’ <<https://transparency.dsa.ec.europa.eu/statement/20501425380>> accessed 26 June 2024.

³⁶Rojaszczak (n 19) 48.

³⁷Council Framework Decision 2008/913/JHA of 28 November 2008 on combating certain forms and expressions of racism and xenophobia by means of criminal law 2008 (OJ L).

³⁸Recommendation CM/Rec(2022)16 of the Committee of Ministers to member States on combating hate speech 2022.

³⁹*Ibid.*, 1. 3p. This definition is also mentioned on the Council of Europe’s webpage on what hate speech is, though preceded by a reasoning of the lack of definition in the international human rights law; ‘Hate Speech - Freedom of Expression - Www.Coe.Int’ (*Freedom of Expression*) <<https://www.coe.int/en/web/freedom-expression/hate-speech>> accessed 26 June 2024.

could be understood. Still, it should be made clear from the start that case law on content moderation, and especially the responsibilities of private parties in relation to third party content, is scarce. The case law that does exist has previously focused mainly on liability of internet news portals, and to a lesser extent liability or responsibilities of or on social media platforms. However, the existing case law still provides us with an understanding of the position of the Court of the need for content moderation in a broader sense. It should be noted, nonetheless, that there is no need to look for guidance in the case law for the *legal obligation to moderate* certain speech, since that is now clear from the DSA. The case law on moderation specifically will instead be used as a short introduction to provide insight into how the case law has taken steps toward placing liability on service providers over third-party content, going back not even ten years, bringing it closer to the new demands under the DSA, and perhaps in some ways, beyond.

As a starting point for this development, we have the case of *Delfi AS v Estonia*⁴⁰ which was the first case in which the Court decided on liability as online intermediaries for user comments, and the case of *Magyar Tartalomszolgáltatók Egyesülete ('MTE') and Index.hu Zrt v Hungary*⁴¹ regarding a similar situation. The two cases differ significantly in outcome, but both concern the liability for unlawful or unwanted comments made on their platforms. In *Delfi* (that specifies that the Court's reasoning does not apply to the social media context)⁴² the ECtHR ruled that Estonia did not breach Art 10 when holding an online news site liable for 'clearly unlawful' content. In this case the comments were posted in the comments section on its site, and some of these defamatory statements was declared by the Court to amount to hate speech or incitement to violence.⁴³ The consequences of this being that online news sites, that have some form of control over the content in comments sections, could be held liable for said content.⁴⁴

In *MTE and Index.hu* the Court references back to *Delfi* noting that the type of content in question differs between the cases. In *MTE and Index.hu* the content uploaded by a third party was not clearly illegal material, and not amounting to hate speech or incitement to violence, but still vulgar and offensive.⁴⁵ In *MTE and Index.hu* the Court instead argued that Hungary had interfered with art 10 (1) and its freedom to impart information in a way that constituted a violation, when they held MTE and index.hu Zrt responsible for not deleting comments. In doing this the Court argues that domestic courts had not done any sufficient balancing between the freedom of expression interest of the applicants, as providers of free news media online, and that of the plaintiff.⁴⁶ The Court followed this by adding that imposing liability on internet news portals for refusing or failing to remove *clearly unlawful* comments, as in the *Delfi* case, could be warranted, even if the site had not been made aware of the comments by a third party⁴⁷ – indicating that some sort of monitoring of the platform could be necessary. Worth noting is that this has also been accepted in case law from the ECJ, with the addition that identical or very similar material should be identified and removed as well, but only if the host of the

⁴⁰*Delfi AS v Estonia* [GC] (App no 64569/09) (2015) ECHR.

⁴¹*Magyar Tartalomszolgáltatók Egyesülete and Index.hu Zrt v Hungary* (App no. 22947/13) ECHR 2 February 2016.

⁴²*Delfi AS v. Estonia* (n 40) § 116.

⁴³*ibid* § 140 with reference to § 136.

⁴⁴*ibid* § 115–116.

⁴⁵*Magyar Tartalomszolgáltatók Egyesülete and Index.hu Zrt v. Hungary* (n 41) § 63–64.

⁴⁶*ibid* § 88.

⁴⁷*ibid* § 91.

service does not have to carry out an independent assessment to determine the legality of the content.⁴⁸

The difference in outcome between these cases from the ECtHR contextualizes and clarifies the scope of the *Delfi* case as including ‘clearly unlawful’ comments, and not those that are only offensive or vulgar one, as explained in *MTE and index.hu* by concurring Judge Küris. He stated that ‘the present judgment does not, in my opinion, depart from the *Delfi* AS principles.’⁴⁹ However, for online intermediaries and platforms to identify and differentiate between hate speech and other offensive speech, they would have to have a quite significant monitoring system in place. That would even mean that what the case law indicates is substantially more far reaching than the DSA, that explicitly doesn’t demand general monitoring.

From *Delfi* and *MRT* and *index.hu*, the case law has now developed with, most significantly, the *Sanchez v France*⁵⁰ case from 2023. *Sanchez* was the first time that it was not considered a violation of art 10 to impose criminal liability on a Facebook user for comments made on their wall by a third party.⁵¹ In this case the applicant claimed that his freedom of expression had been violated when French courts had convicted him for not deleting hateful comments from his own Facebook wall – comments that where of a discriminatory and hateful nature, inciting hatred or violence against the Muslim community. The ECtHR ruled against the applicant on this issue, but for the purpose of this article the implications of their reasoning on *shared liability* between actors are of greater importance. The Court reasoned that there should be a sharing of liability between all actors involved, and that ‘[...] professional entities which create social networks and make them available to other users necessarily have certain obligations’⁵² referencing back to the above-mentioned Code of Conduct on Countering Illegal Hate Speech Online.⁵³ The Court later continues by emphasizing that some kind of moderation, automatic or otherwise, from social media service providers is necessary:

The Court first observes that there can be little doubt that a minimum degree of subsequent moderation or automatic filtering would be desirable in order to identify clearly unlawful comments as quickly as possible and to ensure their deletion within a reasonable time, even where there has been no notification by an injured party, whether this is done by the host itself (in this case Facebook), acting as a professional entity which creates and provides a social network for its users, or by the account holder, who uses the platform to post his or her own articles or views while allowing other users to add their comments.⁵⁴

⁴⁸Case C-18/18 *Eva Glawischnig-Piesczek v Facebook Ireland Limited* [2019] ECJ 3 October 2019, p. 39, 41, 45 and 46. Clara Rauchegger and Aleksandra Kuczerawy, ‘Injunctions to Remove Illegal Online Content under the Ecommerce Directive: Glawischnig-Piesczek’ (2020) 57 Common Market Law Review 1495, 1495.

⁴⁹*Magyar Tartalomszolgáltatók Egyesülete and Index.hu Zrt v. Hungary* (n 41) Concurring opinion of Judge Küris, p 2. Erik Tuchtfield, ‘Be Careful What You Wish For’ [2023] Verfassungsblog <<https://verfassungsblog.de/be-careful-what-you-wish-for/>> accessed 28 June 2024.

⁵⁰*Sanchez v France* [GC] (App no. 45581/15) ECHR 15 May 2023.

⁵¹Anni Carlsson, *Constitutional Protection of Freedom of Expression in the Age of Social Media: A Comparative Study* (Department of Law, Uppsala University, 2024) 217; See also Jannika Jahn, ‘Strong on Hate Speech, Too Strict on Political Debate’ [2023] Verfassungsblog <<https://verfassungsblog.de/strong-on-hate-speech-too-strict-on-political-debate/>> accessed 2 July 2024 for an in-depth discussion on the implications according due to the political context.

⁵²*Sanchez v. France* (n 50) § 185.

⁵³*ibid* § 75 with reference to; European Commission (n 27).

⁵⁴*Sanchez v. France* (n 50) § 190.

Later in 2023, in the case of *Zöchling v Austria*,⁵⁵ the Court was placed to decide on if the publisher of an internet news portal could be held liable for hate speech in a comment section to a news article. Here the Court explicitly reiterated both *Delfi* and *Sanchez* stating that a minimum degree of subsequent moderation or automatic filtering would be desirable.⁵⁶ This potentially has more extensive implications than the DSA, seeing that this would demand some kind of monitoring of content on platforms – by some actor – if the platforms or users of platforms should delete clearly unlawful comments even without notification. Taken together, this means that both the case law from the ECtHR, and the framework provided by the DSA, demand moderation or even automatic filtering of same content, mainly hate speech or incitement to violence.

How to understand hate speech under ECHR

Seeing that neither illegal content, nor hate speech is precisely defined under the DSA, the specificities of how illegal hate speech are understood under the convention need to be clarified. This can contribute to a better understanding of the extent to which ECtHR case law could inform content moderation practices of platforms, by adding an interpretive backdrop to the concept of hate speech under the DSA.

In the vast case law on hate speech, freedom of expression and abuse of rights, the ECtHR have differentiated between what is protected as free speech, what is considered hate speech (where restrictions are legitimate) but still analyzed under art 10, and hate speech that is removed altogether from protection of art 10 in accordance with art 17.

Free speech or hate speech?

A case from the first category, balancing free speech under art 10 with unlawful speech, and in a way touching upon hate speech, is the case of *Pihl v. Sweden*.⁵⁷ The case revolves around comments left on a blog, calling someone a ‘real hash-junkie’ which amounted to defamation under Swedish law. Here the Court stated that such comments ‘[...]certainly did not amount to hate speech or incitement to violence’ but offensive speech.⁵⁸ The case of *Gündüz v Turkey*⁵⁹ is also interesting in determining what could be viewed as hate speech. The statements in question took place during a television show, where the applicant was invited to be part of a debate, discussing democracy and religion, and if democratic values were incompatible with the conception of Islam that the Islamic sect he represented had. The applicant called democracy in Turkey ‘despotic, merciless and impious’ and called for Sharia law instead.⁶⁰ For this, the applicant was punished under national law for hate speech to a two-year prison sentence. Here, the Court emphasized the very specific context – that this was a televised debate that focused on difference of opinion and to enlighten the audience – which will raise the bar for what is considered hate speech. The Court reiterates that ‘[...]expressions that seek to spread, incite or justify hatred based on intolerance, including religious intolerance, do not enjoy the

⁵⁵*Zöchling v Austria* (App no. 4222/18) ECHR 5 September 2023.

⁵⁶*ibid* § 13.

⁵⁷*Pihl v Sweden* (dec.) (App no. 74742/14) ECHR 7 February 2017.

⁵⁸*Pihl v. Sweden*, § 25. The Court regarded such insults as under the scope of art 8, and that Sweden had acted within its ‘margin of appreciation doing a reasonable balancing between the rights in art 8 and 10 (§ 37).

⁵⁹*Gündüz v Turkey* (App no. 35071/97) ECHR 2003-XI.

⁶⁰*ibid* § 15.

protection afforded by Article 10 of the European convention⁶¹ but that simple defending of Sharia laws without calling for violence to instate it, cannot be viewed as hate speech. The Court also points to the context, where the applicant had been specifically invited to this discussion where different points of view would counterbalance each other and inform the audience of a matter of interest for the public. Consequently, the applicant's freedom of expression under art 10 had been violated.⁶²

Similar circumstances can be found in *Jersild v Denmark*,⁶³ where a late-night program invited a radical xenophobic group for an interview, a group who then made racist statements on air. The nature of the comments was that of comparing black people to gorillas, and that slavery should be allowed, and other similar comments.⁶⁴ The host of the show, as well as the head of Danmark Radio's news section, was convicted of aiding and abetting the group to make hateful, racist comments. The Commission, however, found that the rights under art 10 had been infringed since this was a show that was aimed at an informed public, concerning issues of societal importance.⁶⁵ The Commission also noted that the program gave counterbalanced arguments toward the group and the racist ideas. The case is relevant in the matter of hate speech since it is clearly stated that the expressions made by the xenophobic group was not protected under art 10,⁶⁶ but the case was not concerning the group itself but others allowing these comments to be aired.

Cases regarding speech that has been defined as hate speech, but still not removed from the scope of art 10, are few, but one can be found in *Sürek v. Turkey*.⁶⁷ In this case a publisher, the applicant, allowed two letters criticizing the Turkish government to be published. For this he was fined, which he viewed as an unjustified interference with his rights under art 10. The letters contained expressions against, what's referred to as 'the fascist Turkish army' and that they are a 'murder gang' and similar statements. Considering this was part of a highly polarized political context, the Court stated that '[...] the impugned letters amount to an appeal to bloody revenge by stirring up base emotions and hardening already embedded prejudices which have manifested themselves in deadly violence'.⁶⁸ Several people were also mentioned by name in these letters, and seen together with the political and societal context, the Court meant that '[...]the letters must be seen as capable of inciting to further violence in the region by instilling a deep-seated and irrational hatred against those depicted as responsible for the alleged atrocities'.⁶⁹ Based on this, the Court stated that this amounted to hate speech and incitement to violence stirring up hatred as well as potentially increasing the risk of physical violence.⁷⁰ The Court hence places emphasis on both the expressions themselves, the surrounding factors of societal security, and the risks of physical harm for certain individuals.

⁶¹ibid § 51.

⁶²ibid § 44, 51.

⁶³*Jersild v Denmark* (App no. 57891/17) (1994) Series A no. 298 (EComHR).

⁶⁴ibid § 11.

⁶⁵ibid § 34, 37; David Keane, 'Attacking Hate Speech under Article 17 of the European Convention on Human Rights' (2007) 25 Netherlands Quarterly of Human Rights 641, 652.

⁶⁶*Jersild v. Denmark* (n 63) § 35.

⁶⁷*Sürek v Turkey (no 1)* European Court on Human Rights (App no. 26682/95) (1999) ECHR 1999-IV.

⁶⁸ibid § 62.

⁶⁹ibid § 62.

⁷⁰ibid § 62–63.

The arena where the statements are made is therefore highly important, as well as the surrounding context. Here, a reminder of *Sanchez v France* is in order. As mentioned, the applicant was convicted for failing to delete hateful posts from his own Facebook wall. In this case the wider context is also relevant. The applicant was a politician, and statements made in a political context has, generally speaking, obtained a stronger protection under art 10.⁷¹ This is also emphasized in *Sanchez* where the Court states that there is very little room to restrict political speech under art 10, and also that politicians must enjoy a broad freedom in relation to elections.⁷² However, this does not include using their platform to allow ‘racist or xenophobic discourse’ since the political context risk ‘stirring up hatred and intolerance’ – allowing such discourse to have a greater impact and become even more harmful.⁷³

Another significant case on both narrowing in on a definition of hate speech, showing the contextual nature of it, and drawing the line between hate speech and free speech in art 10, is the case of *Vejdeland v. Sweden*.⁷⁴ Here the Court starts to develop a case law for sexual orientation as hate speech, stating that:

[s]exual orientation should be treated in the same way as categories such as race, ethnicity and religion which are commonly covered by hate-speech and hate-crime laws, because sexual orientation is a characteristic that is fundamental to a person’s sense of self. It is, moreover, used as a marker of group identity.⁷⁵

In the case of *Vejdeland* a group of people distributed leaflets in an upper secondary school, sharing negative views on homosexuality, calling it a ‘sexual deviance proclivity’ and claims that the homosexual lobby tries to play down the severity of pedophilia, and the like. For this, the applicants were convicted under national law, which the Court found not to be a violation of freedom of expression under art 10. The context played a vital part in this reasoning. The Court stated that inciting hatred, without calling for violence, can be enough for States to favor protecting society against such speech, over the freedom of expression of others, when ‘exercised in an irresponsible manner’. Further, seeing that the leaflets were targeting children (and not an informed audience), who are more susceptible and vulnerable and who could not choose to refuse the leaflet played part in the Court’s decision. The fact that the penalties were minor, ranging from fines to probation, was also noted by the Court as not being excessive.⁷⁶

In a later case, *Lilliendahl v Iceland*,⁷⁷ similar statements are analyzed as in the *Vejdeland* case. Here, the Court draws up two different kinds of hate speech from its’ own case law – naming *Delfi* and *Vejdeland* and a couple other cases⁷⁸ – as examples of ‘less grave’ forms of hate speech that does not fall entirely outside the scope of art 10. The Court specifies that the ‘less grave’ forms of hate speech are those that attacks persons or groups of people by insulting, slandering or ridiculing them, which can be enough for States to

⁷¹Enarsson and Lindgren (n 1) 11.

⁷²*Sanchez v. France* (n 50) § 146, 147, 148. Here the Court also references § 178 in the *Sürek* case.

⁷³*ibid* § 153.

⁷⁴*Vejdeland and Others v Sweden* (App no. 1813/07) ECHR 9 February 2012.

⁷⁵*ibid* § 45.

⁷⁶For similar discussions on hate speech targeting sexual orientation, see *Beizaras and Levickas v Lithuania* (App no. 41288/15) ECHR 14 January 2020, § 125, 128; *Vejdeland and Others v. Sweden* (n 74) § 55, 56, 58.

⁷⁷*Lilliendahl v Iceland (dec)* (App no 29297/18) ECHR 12 May 2020.

⁷⁸*Beizaras and Levickas v. Lithuania* (n 76); *Féret v Belgium* (App no. 15615/07) ECHR 16 July 2009.

balance the protection of those people or groups over free speech of others. The homophobic comments made in the *Lilliendahl* case was, just like the other mentioned cases, placed in this category.⁷⁹

Whether or not the statement will be viewed as hate speech at all will depend on ‘the content of the expression and the manner of its delivery’ – again proving that this is highly contextual. The other kind of hate speech identified by the Court includes the gravest forms of hate speech that is excluded entirely from the protection of art 10, and placed under art 17 instead.⁸⁰

Hate speech as an abuse of rights

In the European convention, art 17 serves as an extra safeguard of the democratic values stated in other articles of the convention, providing ways for democracy to ‘defend itself’.⁸¹ Because of this, art 17 has been referred to as the ‘abuse clause’,⁸² stating that no State, individual or group in society can rely on the rights of the convention in order to somehow abuse those rights, by undermining, destroying or trying to dismantle democracy.⁸³ The use of art 17 is restrictive though, as it should only be applied to limiting the rights under the convention being completely overturned or undermined.⁸⁴ Art 17 can also never be used independently, and must always be used in relation to the article under which a right is being abused.⁸⁵

In the case of *Norwood v United Kingdom*⁸⁶ this is demonstrated in relation to art 10, where the applicant had placed a large poster in his window with the burning twin-towers and an anti-Muslim message, calling for Muslims to leave Britain. He claimed that the criminal charges against him on this matter violated his rights under art 10 and was discriminatory under art 14. However, the Court did not agree with this stating that:

Such a general, vehement attack against a religious group, linking the group as a whole with a grave act of terrorism, is incompatible with the values proclaimed and guaranteed by the Convention, notably tolerance, social peace and non-discrimination. The applicant’s display of the poster in his window constituted an act within the meaning of Article 17, which did not, therefore, enjoy the protection of Articles 10 or 14.⁸⁷

Mirroring this is the case of *Belkacem v. Belgium*⁸⁸ where the applicant posted videos on YouTube with the message to take down all non-Muslims. The Court reasoned that the sweeping nature of the statements towards all non-Muslims, and that the videos stirred up hatred and violence, was incompatible with the values protected under the convention.⁸⁹

⁷⁹*Lilliendahl v. Iceland (dec.)* (n 77) § 33, 36.

⁸⁰*ibid* § 33–34.

⁸¹See *Vogt v Germany* (App no. 17851/91) ECHR 26 September 1995, § 51.

⁸²Hannes Cannie and Dirk Voorhoof, ‘The Abuse Clause and Freedom of Expression in the European Human Rights Convention: An Added Value for Democracy and Human Rights Protection?’ (2011) 29 *Netherlands Quarterly of Human Rights* 54.

⁸³*Paksas v Lithuania* [GC] (App no. 34932/04) ECHR 6 January 2011, § 87; *Refah Partisi (The Welfare Party) and others v Turkey* [GC] (App nos. 41340/98, 41342/98, 41343/98 and 41344/98) ECHR 2003-II, §§ 98–99.

⁸⁴Bernadette Rainey, Elizabeth Wicks and Clare Ovey, *Jacobs, White, and Ovey: The European Convention on Human Rights*, vol 2017 (7th edn Oxford University Press) 124.

⁸⁵Cannie and Voorhoof (n 82) 58.

⁸⁶*Norwood v United Kingdom* (App no. 23131/03) ECHR 2004-XI.

⁸⁷*ibid*.

⁸⁸*Belkacem c Belgique (dec)* (App no. 34367/14) ECHR 27 June 2017.

⁸⁹Council of Europe/European Court of Human Rights, ‘Guide on Article 17 of the Convention – Prohibition of Abuse of Rights’ (2024) 36.

The Court has also developed a vast case law on its' view on denying the Holocaust, including the cases of *Garaudy v France*,⁹⁰ *Witzsch v. Germany*,⁹¹ *M'Bala M'Bala v France*⁹² and *Williamson v. Germany*⁹³ and others. These cases all represent the view of the Court that you cannot rely on the rights of the convention to deny the occurrence of the Holocaust or other Nazi crimes. The case of *Williamson* can serve as an example, where the applicant took part of a Swedish journalistic investigatory program, discussing that he did not believe that there where gas chambers used to kill Jews during World War II, and that the number of Jews killed perhaps amounted to a couple hundred thousand, but not millions.⁹⁴ The program was also available in Germany for German viewers and the applicant was well aware that such statements were illegal.⁹⁵

Worth noting it that the Court has seemingly differentiated between the Holocaust and statements made about other genocides. The case of *Percinek v Switzerland*⁹⁶ is an example of this, regarding the denial of the Armenian genocide. The applicant, a politician and Chairman for the Turkish Worker Party, made statements on three separate occasions, claiming each time that the genocide was a 'lie' that was part of (or must be understood as) a conspiracy of sorts.⁹⁷ Here the Court argued that:

[...]the applicant's statements did not amount to incitement of hatred towards the Armenian people, that he had not expressed contempt towards the victims of the events of 1915 and the following years, and that he had not been prosecuted for seeking to justify a genocide, the Chamber concluded that the applicant had not used his freedom of expression for ends contrary to the text and spirit of the Convention. There was therefore no reason to reject his application under Article 17.⁹⁸

In a case of racial discrimination from 1979, *Glimmerveen and Hagenbeek v. the Netherlands*,⁹⁹ the Commission relied on art 17 regarding statements made by the applicant on distributed leaflets. here, the applicant advocated for a homogenous white population in the Netherlands, and expulsion of workers from other countries, especially singling out certain groups. The applicants where both part of a political party, and claimed that as soon as they would come to power, they would remove these unwanted groups of people. The Commission stated that the applicants tried to use the rights under the convention 'contrary to the text and spirit' of it, hence invoking art 17.

Moderation of clearly illegal hate speech – DSA interpreted in light of the ECHR

So, what guidance does the ECtHR provide, that could inform online moderation under the DSA with regards to hate speech?

Considering that there are already ongoing investigations initiated by the European Commission on the dissemination of illegal content on X, in particular concerning terrorist

⁹⁰*Garaudy v France (dec)* (App no. 65831/01) ECHR 24 June 2003.

⁹¹*Witzsch v Germany* (App no. 7485/03) ECHR 13 December 2005.

⁹²*M'bala M'bala v France (dec)* (App no. 25239/13) ECHR 20 October 2015.

⁹³*Williamson v Germany (dec)* (App no. 64496/17) ECHR 8 January 2019.

⁹⁴*ibid* § 5.

⁹⁵*ibid* § 20, 24.

⁹⁶*Perinçek v Switzerland [GC]* (App no. 27510/08) ECHR 15 October 2015.

⁹⁷*ibid* § 13.

⁹⁸*ibid* § 104.

⁹⁹*Glimmerveen and Hagenbeek v the Netherlands (dec)* (App nos. 8348/78, 8406/78) EComHR 11 October 1979.

material and hate speech,¹⁰⁰ the matter is highly relevant in the emerging developments for countering illegal content online. If VLOPs are to abide by the framework set up by the DSA on such important matters as countering the spread of hate speech in the EU, there must be guidance as to what they are supposed to counter. The most established framework in this legal context is the case law from the ECtHR, hence the EU, through the Commission, ought to consider the case law the ECtHR have developed over the years.

However, from the case law presented above, it is also clear that the definition and scope of hate speech under the convention is not as well-defined as might be desired, and there is some merit to the statement that the Court have used, what has been described as an ‘ad hoc’ approach to racial hate speech, so far.¹⁰¹ However, the case law from the ECtHR does provide some guidelines. The cases presented above show different approaches for when the Court chooses to apply art 17 in cases of hate speech; either when there is a generalized attack on a large, and defined, group of people, like in *Norwood* and *Belkacem*, Holocaust denial, and – like in *Glimmerveen and Hagenbeek* – extreme expressions based on racial discrimination.

It’s also clear from the case law, both *Vejdeland* and *Lilliendahl*, that not only hateful expressions based on race or religion, but also sexual orientation, should be perceived as hate speech, as it is also a part of a person’s identity. The Courts’ clarification that it does divide hate speech into two categories, one that is ‘less grave’ and another for the gravest forms of hate speech, is on one hand helpful in understanding the emerging new case law on different kind of hate speech – that there *is in fact* different kinds of hate speech under the convention – but on the other hand, confusing. The court has developed their reasoning’s on hate speech, and hence, the scope, to also clearly include hate speech targeting sexual orientation in some cases, but not in the traditional sense of the previous usage of the term, but as ‘less grave’ hate speech.

To reiterate what was discussed above regarding illegal content,¹⁰² there is an obligation for VLOPs to delete or restrict access to content that doesn’t comply with Union law or the law under any Member State, when made aware. The complexity of this is made clearer when viewed in light of the case law from the ECtHR. Even in grave forms of hate speech such as Holocaust denial that, according to the case law from ECtHR, can be seen as are textbook examples of hate speech, there is not a clear positive obligation for contracting states to criminalize such speech.¹⁰³ That would then indicate that the spread of such content is clearly illegal under Union Law, but not necessarily explicitly illegal under all national systems within the EU.¹⁰⁴ The notice and action systems demanded by the DSA could then potentially be less effective in legal jurisdictions where such speech is not necessarily criminalized. This would place a higher responsibility on VLOPs to still identify it using other means. That would indicate the use of

¹⁰⁰Commission Opens Formal Proceedings against X under the DSA’ (*European Commission – European Commission*) <https://ec.europa.eu/commission/presscorner/detail/en/IP_23_6709> accessed 31 December 2023; ‘The Commission Sends Request for Information to X under DSA’ <https://ec.europa.eu/commission/presscorner/detail/en/ip_23_4953> accessed 31 December 2023.

¹⁰¹Philippe Yves Kuhn, ‘Reforming the Approach to Racial and Religious Hate Speech Under Article 10 of the European Convention on Human Rights’ (2019) 19 Human Rights Law Review 119, 120.

¹⁰²See under headline ‘The question of *illegality*’ with references.

¹⁰³Jacob Mchangama and Natalie Alkiviadou, ‘Hate Speech and the European Court of Human Rights: Whatever Happened to the Right to Offend, Shock or Disturb?’ (2021) 21 Human Rights Law Review 1008, 1023.

¹⁰⁴‘International Convention on the Elimination of All Forms of Racial Discrimination’ (*OHCHR*) <<https://www.ohchr.org/en/instruments-mechanisms/instruments/international-convention-elimination-all-forms-racial>> accessed 3 July 2024.

automatic systems for such speech, that in some way monitor the platforms, in order to still identify and remove it within given timeframes.

From the analysis of the case law on hate speech it's also clear that contracting States must acknowledge the risks of hateful speech – be it more or less grave hate speech – which indicates an obligation to, at least, have a balanced regulation in place for States that allows for a balancing of interests. The contextual nature shown in the case law, even in cases that has been deemed as containing hate speech, like *Vejdeland* or *Jersild*, show a high level of complexity and need for balanced regulation. In the context of online content moderation, that would suggest moderation systems that are sufficient in making highly contextual decisions, even in 'clear cut' cases that to most people would be perceived as hate speech. That would indicate the need for human moderation as well, in order to be able to make such nuanced and contextual decisions.

Going back to the *Sanchez* and *Delfi* cases, it's worth remembering that the ECtHR explicitly states that a minimum degree of subsequent moderation or automatic filtering would be desirable – especially in cases of hate speech and incitement to violence. The agreed upon 24-hour time limit in the Code of Conduct on Countering Illegal Hate Speech Online would also suggest swift, and therefore, automatic, removal or restriction of visibility of such content. However, it's unclear what that entails. As mentioned, there is no definition of clear hate speech in the DSA, and the Code of Conduct provides a definition that indicates certain racist expressions and xenophobia. It is still unclear if this is the only type of hate speech included in this definition as understood by the DSA, and under this removal timeframe. Are the types of hate speech defined by the Recommendation for combating hate speech by the Committee of Ministers, with its' broader scope, including age, disability, sex, gender identity and sexual orientation included? Is the case law from ECtHR including both racism and homophobia, differentiating between 'less grave' and grave hate speech included? Or is this to be placed under the category of that which could take 'considerably longer' to process¹⁰⁵ due to the context and type of content described by the DSA? These lingering questions show the difficulties in implementing these demands in moderation workflows.

The demands for protecting freedom of expression while also deleting illegal and hateful speech can place VLOPs firmly between a rock and a hard place, seeing that the demands to moderate are very clear, but *what* to moderate is not.

Concluding remarks

The clearest finding in this article is the unclarity of demands placed on VLOPs to protect fundamental rights of users, by – and while – conducting adequate content moderation on hate speech. No guidance is given to VLOPs on what type of moderation system to implement. The freedom this provides for VLOPs to create and use the most suitable systems for their particular service can of course be beneficial for these companies. On the other hand, if the regulatory demands are to be successfully implemented, and thereby, the protection of fundamental rights enhanced, VLOPs must know the scope of their responsibilities.

¹⁰⁵See note 31 and the DSA recital 62.

There are already indications that platforms rely on their own Terms of Service when reporting moderation decisions under the DSA, instead of national legislation, even when moderating illegal content.¹⁰⁶ The lack of definition might also affect their approach to hate speech, as a way of not having to conform to a definition (that is vague at best) and, hypothetically, avoiding nuanced contextualized decisions having to be made. As mentioned, such detection and decisions are difficult for automated and human moderation alike. This could have a negative impact on freedom of expression if it leads to over-moderation, in fear of not following the DSA.

The EU has set up an ambitious framework with the DSA, but the effectiveness could be decreased due to unclear definitions regarding clearly illegal content, as well as hate speech.¹⁰⁷ The capability of VLOPs to handle such responsibilities and being protectors of human and fundamental rights, will also crystalize with time. They now have the task of taking these, often generally framed fundamental rights,¹⁰⁸ where complex decisions balancing different rights are usually made by courts, and try to implement this in their Terms of Service, and of course in their moderation systems. In these uncharted regulatory lands, the continued effects on the safety of users in the online sphere remains to be seen.

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¹⁰⁶Mauritz (n 19).

¹⁰⁷This is also discussed, regarding clearly illegal content, in Rojszczak (n 19) 47.

¹⁰⁸See also discussion on the difficulties of implementing general fundamental rights in content moderation in Eder (n 11) 11–12.